



File No.: RR/00851/2022

RESOLUTION OF THE RECOURSE FOR RECONSIDERATION

Examined the resource for reconsideration filed by FACUA - CONSUMER AND USER ASSOCIATION IN ACTION (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated December 13, 2022, and based on the following:

FACTS

FIRST: On December 18, 2019, a complaint was received by this Spanish Agency for Data Protection (hereinafter, AEPD) with registration number 060796/2019, submitted by the claimant - now the appellant - for an alleged violation of Article 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

In particular, due to the following circumstances:

"We have become aware that several individuals are disseminating audio messages via Twitter (...). The messages, for which the victim has obviously not given authorization for dissemination, may have been obtained from the summary of the case and processed unlawfully."

SECOND: Upon confirming the reported facts, the General Subdirectorate for Data Inspection is urged to initiate ex officio Preliminary Investigation Actions aimed at verifying these facts and eliminating the dissemination of those images on social networks/forums and in any other form.

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities under Article 57.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

THIRD: On December 13, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, deciding to ARCHIVE the proceedings. The resolution was notified to the appellant on December 14, 2022, as evidenced in the file.

FOURTH: On December 30, 2022, the appellant filed a resource for reconsideration through the AEPD's Electronic Registry, against the resolution issued in file RR/00851/2022, expressing their disagreement with the contested resolution, arguing:

That the AEPD archives the file due to the impossibility of identifying those responsible for the publications and because on the profile that has been identified, no audio was published as such, with no personal data being disclosed.

The appellant disputes the investigative work of the AEPD regarding the social media profiles associated with A.A.A., B.B.B., and C.C.C., considering that, in their opinion, other investigative actions can be taken to corroborate that certain social media profiles correspond to those previously mentioned.

Regarding the profile that has been identified, on which no audio was published as such, after acknowledging this fact recorded in the archiving resolution, the appellant claims that D.D.D. retweets a third person, a private individual, who in turn publishes the audios, which they consider sufficient to understand that the information, and therefore the audios, have been disseminated.

They therefore believe that there are indications of a violation of data protection regulations and that the AEPD must carry out all investigative actions within its power, deeming the archiving of the procedure unacceptable, and requesting the annulment of the contested resolution.

To the above facts, the following apply,

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this resource in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

To identify the individuals who disseminated the audios, preliminary investigation actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1- Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when the investigation of treatments involving massive traffic of personal data is necessary.

2- The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication.

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"that would have been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

The reported publications containing the audio referred to in the complaints have been removed from the reported addresses.

Regarding the identification of those responsible for the publications, they could not be determined through the social media managers as investigations were opened ex officio based on facts reported by third parties. No information has been obtained in this regard from the Court of First Instance and Instruction ***COURT.1, which decreed the provisional dismissal of the proceedings opened in that Court.

The holder of one of the reported profiles has been identified, but it should be emphasized that this profile did not publish the audio as such, but rather a link to another of the reported profiles, without any audio from those that motivated the complaints existing in this profile. Therefore, this Agency understands that if no subsequent action is taken to access the link as such, it cannot be inferred what or who it refers to, and thus does not reveal any personal data.

Furthermore, it should be noted that currently, the controversial link directs us to a page that does not exist.

The investigation has been carried out in accordance with the powers conferred in Article 58.1 of the GDPR and following the provisions of the LOPDGDD, in accordance with the legally established procedure.

According to the Supreme Court ruling of June 9, 2014 (Rec. 526/2011), the jurisprudential doctrine of that Chamber of the Supreme Court regarding sanctioning files of the General Council of the Judiciary applies, which has also been applied in the area concerning the exercise of sanctioning powers of the AEPD, in the ruling of January 24, 2013 (Rec. 51/2010) which "recognizes the legitimacy of the complainant to demand the development of the investigative activity that is deemed appropriate for the proper investigation of the facts that have been reported, but not for that activity to necessarily end in a sanctioning resolution, and this is because the imposition of a sanction on the reported person, as it does not produce any positive effect in the legal sphere of the complainant, nor does it eliminate any burden or encumbrance of any kind in that sphere, does not embody the real interest that is necessary for the legitimacy to be appreciated, which, as an inescapable prerequisite of the contentious-administrative process, is required by Article 19 of the Jurisdictional Law." This criterion is reiterated in the Supreme Court ruling of May 18, 2015 (Rec. 277/2013) and in the subsequent Supreme Court ruling of January 1, 2018 (Rec. 2368/2016) issued in this same area of data protection. It should also be added that the complainant, in their complaint, did not prove that the tweet was published, and from the Preliminary Investigation Proceedings of the AEPD, the opposite cannot be deduced.

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III

Conclusion

Based on the information provided in the previous paragraphs, and having examined all the documentation in the file, both that provided by the complainant and the documents obtained and generated by the General Subdirectorate for Data Inspection in the preliminary proceedings, it is concluded that at the time of issuing the resolution of dismissal in this act being challenged, no evidence was found that substantiated the existence of an infringement within the jurisdictional scope of the Spanish Agency for Data Protection.

It should also be noted that the reported facts date back to December 2019, so considering that, for the purposes of prescription, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years..."

as of the date of resolution of this appeal, the facts would be time-barred, so no new proceedings could be initiated; therefore, it is appropriate to agree to dismiss it.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by FACUA - CONSUMER AND USER ASSOCIATION IN ACTION against the resolution of this Agency issued on December 13, 2022, by which it was agreed to proceed with the filing of the proceedings.

SECOND: TO NOTIFY this resolution to the appealing party.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned Law.

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Mar España Martí

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